OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Shoalhaven Council committees: why no whole-of-system review with firm recommendations

Sent 19 October 2026 · To Shoalhaven City Council · Response requested by 23 October 2026

OPEN LETTER
To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council
Copied to: Clr Peter Wilkins, Deputy Mayor; all councillors; the Chairperson, Audit, Risk and Improvement Committee
From: Stephen Prothero, Eye on Shoalhaven Council
Date: 19 October 2026
Subject: Council's committees: why there is still no whole-of-system review with firm recommendations to fix or close them, and what the Youth Advisory Committee report (CL26.272) shows
STATUS OF THIS LETTER
This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.
It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.
It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.
It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.
It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.
It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.
Replies will be published in full. If no reply is received, that will be recorded as it stands.

Mr Constance,
On Tuesday 27 October Council will consider report CL26.272, which recommends that the Youth Advisory Committee be disestablished from 1 December 2026. Item CL26.284 on the same agenda recommends merging four housing and planning committees into one, and item CL26.267 deals with a briefings committee. I have read all three. I acknowledge them:

they are the first reports I have seen on a number of these bodies, and the Youth Advisory Committee report is candid about what went wrong.

My question is why they arrive one at a time. I have now written to you about the committee system on several occasions, most recently on 7 September, when I asked eleven questions and asked for a reply by 9 October. [PLACEHOLDER: state the position, e.g. no reply had been received as at 19 October / a reply was received on (date) and is published at (link).] The problems in those letters have not changed, and CL26.272 repeats them.

1. What CL26.272 itself records

• A quorum was reached at three of nine scheduled Youth Advisory Committee meetings between August 2023 and February 2026.

• Councillors rarely sought the committee's advice.

• The report responds to a resolution of 23 September 2025 (MIN25.484) that also covered the Aboriginal Advisory Committee and the Inclusion and Access Advisory Committee. It arrives about thirteen months later, for one of the three.

• The financial implications are stated as none, with the replacement Youth Impact Project to be delivered within existing operational resources. No figure is given for what the committee cost, or what the project will cost in staff time.

• The report lists no occasion on which the committee's advice changed a decision.

• Annual reporting on the new model is to go to the councillor portal, alongside quarterly DPOP reporting.

• Attachment 1 is stated to be under separate cover. I have not seen it.

The recommendation to close a committee that could not reach a quorum is, in my view, sound. The concern is what the report shows about the system around it.

2. The pattern

The same faults appear again and again across the committees, taskforces, working groups and panels:

• No quorum or low attendance. Youth: three of nine. The Aboriginal Advisory Committee's records show meetings lapsing for want of a quorum in 2025, and its chair resigned on 3 August 2026.

• Advice only, and nobody asking. The terms of reference describe non-binding advice, and the Youth report says such committees are not legislatively required.

• Slow. Thirteen months for this report. Five bodies sat dormant for about nineteen months on average before being wound up in September 2025.

• No cost figure. The October 2024 and September 2025 committee reports (CL24.289 and CL25.303) carry the same unquantified cost paragraph. CL26.272 says there are no financial implications.

• No tracking of results. I have found no public register that follows committee advice through to an outcome.

• Out-of-date rules. The terms of reference for the Aboriginal Advisory Committee

(POL16/172) and the policy covering section 355 committees (POL22/72) each carried a review date of 1 December 2024.

In my view, and I put it as an opinion for your answer, much of this system produces the appearance of consultation without tangible outcomes. Councillors and the community are asked to take part in meetings, but the public record shows few decisions that were changed by them and no regular account of what they cost. That is a judgment about how the system operates, not about any councillor, officer or committee member.

3. Your functions

Under section 335 of the Local Government Act 1993 the general manager conducts the day-to-day management of the council, implements its lawful decisions without undue delay, advises the governing body on the development and implementation of its plans, programs and policies, and ensures that the Mayor and councillors are given timely information and advice. Council creates and ends committees by resolution, and I do not suggest otherwise. My question is about the information and advice that goes with those decisions.

Each committee report to date has asked Council to decide on one body, on its own facts. None has put the whole system in front of councillors with costs, outcomes and a recommendation for each body.

4. Questions

Question 1. Why has no whole-of-system review of every committee, taskforce, working group, panel and forum been brought to Council, with firm recommendations to fix or close each one, when the faults are already on the public record in CL24.289, CL25.303 and now CL26.272?

Question 2. Is there any resolution, legal advice, policy or other reason that prevents you from bringing such a report? If so, what is it? If not, will you bring it to an Ordinary meeting before the end of 2026, covering for each body: its establishing resolution; its terms of reference and review date; its cost in officer hours and dollars for 2025/26; meetings held against meetings scheduled; quorum record; recommendations made and what became of them; vacancies; and your recommendation to amend, continue or close it, with reasons?

Question 3. Will that report identify, for each body, at least one decision of Council or staff that was changed by its advice in this term? If a body cannot be shown to have changed any decision, will you recommend closing it?

Question 4. What did the Youth Advisory Committee cost to run in officer hours and dollars, what will the Youth Impact Project cost in staff time, and which existing work will stop to make room for it, given that CL26.284 says committee servicing is tying up staff?

Question 5. How many members did the Youth Advisory Committee have, and how many gave the advice on which disestablishment is said to be based? Can the report's figures (83% preferring in-person engagement, 54% school-based, 35% community events and 11% a formal committee) be reconciled, and what do they measure?

Question 6. What measures and review date apply to the Youth Impact Project, and will results be reported at an open meeting rather than only through the councillor portal?
Question 7. When will Council receive the reports on the Aboriginal Advisory Committee and the Inclusion and Access Advisory Committee that MIN25.484 called for, and will they include resourcing and outcomes?
Question 8. Does Council keep, for any committee, an action register recording each recommendation, the officer responsible, the due date, the status and the result? If not, will you establish one and publish it?
Question 9. When will POL16/172 and POL22/72 be reviewed, and will you recommend a sunset provision under which every advisory body ceases on a fixed date unless re-established by a separate resolution on its own report?
Question 10. If you do not intend to bring a whole-of-system report, what is your reason, and how do you expect councillors to judge whether the committee system as a whole is worth its cost?

I ask for a response by Friday 23 October 2026, ahead of Council's meeting on 27 October. If any question cannot be answered, please say which and why, so the reason can be reported accurately.
I intend to publish this letter and any reply in full at steveprothero.substack.com and in the Eye on Shoalhaven Council group. If no reply is received by 23 October I will report that plainly.
No adverse finding has been made against any councillor, officer or committee member, and none is implied. Every factual statement in this letter is drawn from Council's published agendas, minutes, reports and policies and from the Local Government Act 1993. The statements marked as opinion are mine. I will correct any error promptly and with the same prominence.
Yours sincerely,
Stephen Prothero
Documents relied on: Local Government Act 1993 (NSW), s 335; Shoalhaven City Council Ordinary Meeting agenda, 27 October 2026, items CL26.272, CL26.284 and CL26.267; MIN25.484 (23 September 2025); CL24.289 (28 October 2024); CL25.303 (23 September 2025); Terms of Reference POL16/172 and policy POL22/72; Aboriginal Advisory Committee agendas and minutes, 2025 and 2026; Eye on Shoalhaven Council, 4, 5 and 7 September 2026.

EDITORIAL NOTES: NOT FOR PUBLICATION
• Placeholder. Fill the highlighted line in the opening with the real position on the 7 September letter (deadline was 9 October). I found no reply in the project.
• Banner image. The signature block needs the banner PNG pasted at the highlighted placeholder. It was not in this session.
• Section 335 not checked against the Act. legislation.nsw.gov.au and AustLII blocked me.

The letter paraphrases s335 and cites no paragraph letters. Please check it before sending, per your standing rule.

• Status wording. Standard text used verbatim. Questions ask what he will do, as in the 7 September letter (Questions 9 and 10), so the 'not a request for service' wording is consistent.

• Facts carried from the article and earlier letters. Recheck: nineteen months average dormancy; the POL16/172 and POL22/72 review dates (1 December 2024); the AAC quorum lapses (April 2025 is from published minutes; August 2025 is inferred, so the letter says only 'in 2025'); the AAC chair resignation on 3 August 2026; the CL24.289 and CL25.303 cost paragraphs.

• Youth Impact Project attachment not seen. Question 6 and Question 5 may be partly answered there.

• Copy line and the Mayor. The copy line matches 13 October and does not mention the Mayor or her leave. Re-check her status before sending.

• Send route. Check whether letters go through a nominated single point of contact. Address to council@shoalhaven.nsw.gov.au for the CEO's attention, read receipt on, keep the sent copy. Diary 23 October. Add the running tally of earlier letters.

• What it deliberately omits. No mention of the OLG s430 investigation. No motive is alleged. No offer or concession is made. 'Appearance of consultation' is labelled as opinion about the system, not individuals.

• Timing. Sending on Monday 19 October gives four days before the 27 October meeting. If you prefer it to land alongside the article on Saturday 24 October, hold it, but the deadline then falls after the meeting.
